

ExpectedEstate

TRUST ADMIN REVOCABLE

NAVIGATION

Dashboard

Settlement Path

SETTLEMENT

Asset Ledger

Liabilities

Accounting

Final Distribution

Official Forms

RECORDS

Discovery Assistant

Document Vault

Settlement Trail

Follow-Ups

SUPPORT

Help Center

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SYSTEM

Profile

Admin Console

pth02-intestate

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Authority Support Required

1 asset is awaiting your Letters Testamentary to finalize ownership.
These assets require probate authority (Letters Testamentary) to complete the transfer process.

FINALIZE DOCUMENTS

VIEW ASSET LIST

Strategic Assessment

Secure & Notify • Death to Filing

Petition & Authority

Obtaining Powers • After Petition Filed

Asset Discovery

Inventory & Appraisal • After Letters Issued

Creditor Claims

Notice & Priority • After Notice Published

Asset Liquidation

Managed Transfer • After Inventory Approved

Final Distribution

Estate In Closing • After Claim Period

Preliminary Assessment

Current

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Preliminary Asset & Liability Scan

NEXT STEP

Identify known bank accounts, real estate, and major debts. This data is critical for estimating estate value on the petition and determining requirements.

Evaluate Small Estate Eligibility

OPTIONAL

Determine if total assets are under the state's small estate threshold. This may allow for a simplified Affidavit process, bypassing full probate.

Confirm Executor/Trustee Role

Review the Will or Trust to confirm your appointment and willingness to serve.

Profile Settings

Secure the Property

Change locks, forward mail, and ensure the home is protected from theft or damage.

Upload Photos

Identify Minor Beneficiaries

OPTIONAL

Review all heirs and identify any beneficiaries under age 18. Minors require special court protection through a guardian ad litem.

Protect Minors

Evaluate Primary Residence Succession

OPTIONAL

https://www.expectedestate.com/roadmap

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Probate Roadmap | ExpectedEstate

If the estate consists primarily of a primary residence valued under \$100,000, you may qualify for the simplified Succession process (DE

Check Eligibility

Initial Property Protection

Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.

Verify TOD Deed Recordation Date

Statutory Rule: A TOD deed must be recorded before the owner's death to be legally valid. Confirm the 'Date Filed' on the deed.

Confirm No Subsequent Revocation

Check for any subsequently recorded 'Revocation of TOD Deed' or a newer TOD deed that might override the current one.

Confirm Beneficiary Survival Status

Verify the named TOD beneficiary survived the transferor. If the beneficiary predeceased, the TOD deed typically fails unless 'Anti-Lapse

Check for Joint Tenancy Override

Verify the property was not held in Joint Tenancy at the time of death. In many states, Joint Tenancy survivorship overrides a TOD deed.

Establish Beneficiary Transfer Authority

Instead of 'Letters Testamentary', the TOD beneficiary uses a 'Transfer Packet' to claim title.

Certified Death Certificate Obtained



UPLOAD RECORDED TOD DEED COPY

UPLOAD AFFIDAVIT OF DEATH OF TRANSFEROR

UPLOAD PCOR FORM

PROBATE ESCALATION: Deed Issue Detected

If any of the validation checks failed (unrecorded deed, predeceased beneficiary, joint tenancy conflict), you must pivot to a formal proba

Notify Social Security Administration

Report the death to stop benefit payments and prevent overpayment recovery.

Death Certificate Obtained



Upload Death Certificate

Record Affidavit of Death (TOD)

Prepare and record an Affidavit of Death of Transferor to formally transfer title to the TOD beneficiary.

Death Certificate Obtained



UPLOAD AFFIDAVIT OF DEATH

UPLOAD RECORDED TOD DEED

Notify County Recorder & Assessor

Submit Change in Ownership Statement to the county to update tax records and prevent penalties.

UPLOAD BOE-502-A

Cancel Credit Cards & Subscriptions

Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts

Manage Utilities

Review decedent's utility accounts (electricity, water, gas).

Conduct Genealogical Search

OPTIONAL

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribu

Locate Will and Important Documents

Find the original Will, trust documents, insurance policies, and account statements.

Upload Will

☐ Establish Estate Financial Account

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

 Death Certificate Obtained



 UPLOAD LETTERS (DE-150)

 UPOLOAEIN

Upload Proof

☐ Managed Payment of Immediate Bills

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

Track Bills

☐ Confirm U.S. Legal Representative

Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.

☐ Check Apostille Requirements

Determine if your country is part of the Hague Apostille Convention for notarizing documents.

 UPLOAD MISCELLANEOUS

☐ Court Filing

0/5 1 asset

☐ File Petition for Probate (DE-111)

Submit the probate petition to the Superior Court to open the estate case.

 UPLOAD ORIGINAL WILL

 Death Certificate Obtained



 UPLOAD DE-111

 UPLOAD DE-121

Start Petition

☐ Publish Creditor Notice Check Deadline LOCKED

Publish notice in a local newspaper for 3 consecutive weeks to notify creditors.

 UPLOAD COURT CASE NUMBER

 UPLOAD DE-130

Upload Notice

☐ Mail Notice to Known Creditors LOCKED

Send formal notice to all known creditors (banks, credit cards, medical providers).

 UPLOAD DE-157

Notify Creditors

☐ Attend Probate Hearing LOCKED

Appear in court for the probate hearing (usually 60-90 days after filing).

 UPLOAD VALID ID

 UPLOAD DE-130

View Roadmap

☐ Establish Fiduciary Authority (DE-150) LOCKED

Obtain certified copies of the Letters—this document is your legal evidence of authority to manage estate assets.

 UPLOAD DE-150

☐ File Small Estate Affidavit

For estates under threshold, use this shortcut to bypass court probate.

 UPLOAD DE-310

 Death Certificate Obtained



☐ File Spousal Property Petition (DE-221)

Request court order to transfer property to surviving spouse without full probate.

 UPLOAD DE-221

 Death Certificate Obtained





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Start Spousal Path

☐ Give Notice of Hearing (DE-120) OPTIONAL LOCKED

Notify all interested parties about the court hearing date for the Spousal Property Petition.

 [UPLOAD DE-120](#)

☐ Obtain Spousal Property Order (DE-226) OPTIONAL LOCKED

Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.

 [UPLOAD DE-226](#)

☐ Issue Certificate of Trust OPTIONAL

Formalize successor trustee authority for trust-held assets.

 [UPLOAD TRUST AGREEMENT](#)

☐ Obtain Business Operating Authority

If the decedent owned a business, you may need a court order to continue operations and pay employees.

☐ File Petition for Guardian Ad Litem (DE-350) LOCKED

Request court appointment of a guardian ad litem to represent minor beneficiaries' interests throughout probate.

 [UPLOAD DE-350](#)

 [Death Certificate Obtained](#)



Set Up Guardian

☐ Obtain Guardian Ad Litem Order (DE-351) OPTIONAL LOCKED

Receive court order appointing guardian ad litem. Provide guardian with all estate information.

 [UPLOAD DE-351](#)

Get Final Order

☐ File Petition to Determine Succession (DE-310) OPTIONAL

File petition with court to determine who inherits the primary residence without full probate.

 [UPLOAD DE-310](#)

 [Death Certificate Obtained](#)



 [UPLOAD PROPERTY DEED](#)

Start Succession

☐ Give Notice of Hearing (DE-120) OPTIONAL LOCKED

Notify all interested parties of the hearing date for the succession petition.

 [UPLOAD DE-120](#)

☐ Obtain Order Determining Succession (DE-315) OPTIONAL LOCKED

Receive court order determining property succession. Record order with county recorder.

 [UPLOAD DE-315](#)

☐ Track Special Notice Requests (DE-154) OPTIONAL LOCKED

Maintain list of all parties who have requested special notice. You must serve them copies of ALL court filings.

 [UPLOAD DE-154](#)

 [UPLOAD DE-130](#)

Open Registry

☐ Serve All Special Notice Recipients OPTIONAL LOCKED

Each time you file a document with the court, serve copies by mail on all parties who requested special notice.

Service Tracker

☐ Request Bond Waiver from Heirs (DE-142) LOCKED

Ask all heirs to sign waivers of bond requirement. Bond costs 0.5-1% of estate value annually.

 [UPLOAD DE-142](#)

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Avoid Bond Cost

☐ File Waiver of Bond (DE-142) LOCKED

Submit signed waivers to court and request order waiving bond requirement.

 [UPLOAD DE-142](#)

[Open Workbook](#)

☐ Obtain Order Waiving Bond (DE-143) OPTIONAL LOCKED

Verify that the court has officially waived the bond requirement, typically reflected in a separate Order (DE-143) or the Order for Probate

 [UPLOAD DE-143](#)

 [UPLOAD DE-140](#)

[Open Workbook](#)

☐ Respond to Objections (DE-115/116) OPTIONAL LOCKED

If someone files an objection to the petition or will, you must respond formally and prepare for contest hearing.

 [UPLOAD DE-115](#)

 [UPLOAD DE-116](#)

[View Litigation](#)

☐ Attend Will Contest Hearing OPTIONAL LOCKED

Appear in court for hearing on objection. Be prepared to present evidence supporting will validity.

[Hearing Plan](#)

☐ Resolve Will Contest OPTIONAL LOCKED

Obtain court ruling on objection. If will is upheld, proceed with probate. If invalidated, estate becomes intestate. Contested probate can ex timeline by 6-24 months.

[View Outcome](#)

 [UPLOAD MISCELLANEOUS](#)



Asset Discovery

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 **Letters Testamentary (DE-150) required**
Upload Documents →



Creditor Claims

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☐ FIDUCIARY RISK: Statutory Debt Priority

Evaluate claims according to legal priority (e.g., administration costs, taxes, then general debts).

☐ International Fiduciary: W-8BEN/W-8CE Assessment

For non-resident executors or beneficiaries, determine U.S. tax withholding requirements and treaty eligibility.

☐ International Fiduciary: ITIN Acquisition Protocol

Identify foreign beneficiaries without a SSN/ITIN. Coordinate acquisition of U.S. Individual Taxpayer Identification Numbers to avoid maxi withholding on distributions.

☐ Evaluate Estate Solvency

Compare total assets to total liabilities and funeral/admin expenses.

☐ Wait for 4-Month Claim Period LOCKED

Creditors have 4 months from notice publication to file claims.

☐ Review Submitted Claims

Examine each creditor claim for validity, amount, and supporting documentation.

Review Claims

☐ Creditor Exposure Assessment

Silent Legal Check: Evaluate potential beneficiary liability for decedent's debts. This is NOT a formal probate claim process, but a risk as statutory 'clawback' provisions.

☐ Document Claim Evaluation & Decision

Formally evaluate each timely creditor claim. Document whether the claim is allowed in full, partially allowed, or rejected.

☐ Reject Invalid Claims

File formal rejections for claims that are incorrect, unsupported, or time-barred.

 UPLOAD DE-174 ALLOWANCE OR REJECTION

☐ Pay Approved Claims LOCKED

Pay valid debts in order of priority (funeral, taxes, secured debts, then unsecured).

☐ File Proof of Notice LOCKED

Submit proof that you properly notified all creditors.

 UPLOAD PROOF OF PUBLICATION

 UPLOAD PROOF OF MAILING

 UPLOAD MISCELLANEOUS

☐ Asset Liquidation

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☐ Obtain Court Approval for Minor Distributions

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ Present Letters to All Institutions

Submit certified Letters (DE-150) to every bank, brokerage, and insurance company.

 UPLOAD LETTERS (DE-150)

 Death Certificate Obtained





☐ Transfer Financial Accounts LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

☐ Prepare Notice of Proposed Action (DE-165)

If you have Independent Administration of Estates Act (IAEA) authority, you must notify heirs of your intent to sell real property.

 UPLOAD DE-165

Authorization

☐ Wait for 15-Day Objection Period LOCKED

Mandatory waiting period after serving Notice of Proposed Action to allow heirs to respond or object.

Track Notice

☐ File Petition to Confirm Sale (DE-260)

If you do NOT have IAEA authority, or if someone objects, you must petition the court to confirm the sale of real property.

 UPLOAD DE-260

File Petition

☐ Obtain Sale Confirmation Order (DE-265) LOCKED

Receive signed court order confirming the real estate sale and allowing the close of escrow.

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 UPLOAD DE-265

Obtain Order

☐ Complete Property Sale & Close Escrow LOCKED

Finalize the sale of real estate, sign closing documents, and receive sale proceeds into the estate account.

 UPLOAD FINAL HUD-1/CLOSING STATEMENT

Finalize Sale

☐ File Form 1041 (Fiduciary Income Tax)

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.

☐ Issue Schedule K-1 to Beneficiaries

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

☐ Pay Final Taxes Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.

 UPLOAD ALL TAX DOCUMENTS

☐ Prepare Final Accounting LOCKED

Document all income, expenses, and distributions for court review.

Finalize Estate

 UPLOAD MISCELLANEOUS



Final Distribution

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 Complete liquidation first

View Assets →



ExpectedEstate is not a law firm. We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.



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